

MILLENNIUM MATS LIMITED

(Company number 5388739)

Minutes of a meeting of the board of directors of Millennium Mats Limited (**Company**) held at telephone on 15 March 2024 at 1646 pm.

Present Richard Malpass Chairman

Ian Malpass

Jocelin Harris

Terrence Hedley

1. **CHAIR**

Richard was appointed chair of the meeting and chaired the meeting throughout.

2. **NOTICE AND QUORUM**

The chair reported that due notice of the meeting had been given and that a quorum was present. Accordingly, the chair declared the meeting open.

3. **DECLARATIONS OF INTEREST**

3.1 Each director present confirmed that they had no direct or indirect interest in any way in the proposed transaction and other arrangements to be considered at the meeting which they were required by section 177 of the Companies Act 2006 and the Company's articles of association to disclose.

4. **BUSINESS OF THE MEETING**

4.1 The chair reported that by a business purchase agreement dated 2 March 2024 (**BPA**) made between the Company and M&A Matting UK, Ltd (Company number: 14211686) (**Buyer**), the Company had agreed to sell as a going concern its business and assets to the Buyer (**Transaction**).

4.2 The chair reported that the business of the meeting was to consider and, if thought fit, approve:

4.2.1 a proposed deed of variation amending the BPA (**Deed of Variation**);

4.2.2 completion of the Transaction in accordance with the terms of the BPA (as varied by the Deed of Variation) (**Completion**); and

4.2.3 the execution by the Company of certain documents relating to the Transaction and the delivery of those documents to the Buyer on Completion.

4.3 The chair reported that defined terms used in these minutes shall, where the context permits, have the same meanings as defined in the BPA (as defined in minute 4.1 above).

4.4 The chair further noted the board minutes of the Company dated 1 March 2024 in which it was resolved for the Company to approve and execute the certain Transaction Documents (as defined in those minutes).

5. **COMPLETION OBLIGATIONS**

It was noted that at Completion, the Company would comply with its obligations as set out in Part 1 of Schedule 2 of the BPA.

6. **DOCUMENTS PRODUCED TO THE MEETING**

6.1 The following documents were produced to the meeting (together the **Completion Documents**, each a **Completion Document**):

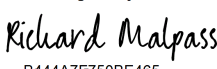
6.1.1 the Deed of Variation;

6.1.2 written resolutions of the sole member of the Company changing the name of the Company and approving the Transaction;

6.1.3 the lease of the land and buildings situated at 3 Michigan Drive, Tongwell, Milton Keynes MK15 8HQ to be granted by the Company to the Buyer in the agreed form set out in Schedule 14 of the BPA (**New 3MD Lease**);

6.1.4 the letter from Richard Malpass re his employment;

- 6.1.5 a written acknowledgement by the Company and its holding company that all arrangements to which the Company and its holding company is a party and which affect the Business or Assets (other than the Business Contracts) have been cancelled; and
- 6.1.6 the Cintas Agreement.
- 6.2 The chair noted that without prejudice to the terms already agreed in the BPA, pursuant to the Deed of Variation, the Company is agreeing to provide the Buyer an indemnity in respect of matters relating to the Company's agreement with Elis Services (registered on Nanterre Trade and Companies Register under number 693 001 091).
7. **RESOLUTIONS**
- 7.1 After careful consideration of the Completion Documents and consideration of the matters referred to in section 172(1) of the Companies Act 2006, **IT WAS RESOLVED** to:
- 7.1.1 proceed to Completion;
- 7.1.2 approve the terms of each Completion Document;
- 7.1.3 authorise any director or, in the case of any Completion Document requiring execution as a deed, any two directors or any director in the presence of a witness who attests their signature, to execute the Completion Documents for and on behalf of the Company in the form produced to the meeting (subject to such amendments, modifications, variations and alterations as those executing the same on behalf of the Company think fit), and to deliver the Completion Documents and any other documents referred to in the BPA as being required to be delivered to the Buyer at Completion;
- 7.1.4 authorise each director of the Company to do all such acts and things and agree and execute for and on behalf of the Company all such other documents, deeds, certificates or notices as they consider necessary or desirable in connection with the Transaction;
- 7.1.5 on receipt of the cash consideration specified in the BPA, to repay all indebtedness to Nat West & Lombard and arrange for the charges registered at Companies House to be marked as satisfied; and
- 7.1.6 in line with the BPA, approve the release of the Announcement, as soon as practicable after Completion, to the Customers of, suppliers to and persons who have had material dealings with the Company in connection with the Business, and approve any other post-Completion obligation as set out at Schedule 2 of the BPA.
8. **FILING**
- The chair instructed that arrangements be made to make all necessary and appropriate entries in the books and registers of the Company and to arrange for the necessary forms and documents to be filed.
9. **CLOSE**
- There was no further business and the chair declared the meeting closed.

DocuSigned by:

Richard Malpass

Chairman

15 March 2024